

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ERIC CUMMINGS,

SUMMONS

Plaintiff,

Index No.:

-
against
-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTOPHER BROWER, Shield No. 7455, NYPD
POLICE OFFICERS JOHN / JANE DOES NUMBERS
ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of
trial.

Defendants.

-----X
To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 17, 2023

Yours, etc.

Cary London, Esq.

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER CHRISTOPHER BROWER, Shield No. 7455, 76th Precinct, 191 Union Street, Brooklyn, NY 11231

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ERIC CUMMINGS,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-
against
-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTOPHER BROWER, Shield No. 7455, NYPD
POLICE OFFICERS JOHN / JANE DOES NUMBERS
ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.

----- X

Plaintiff ERIC CUMMINGS, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On January 9, 2021, at approximately 10:36 p.m., Plaintiff Eric Cumming, while lawfully at or around Hoyt Street and Butler Street, County of Kings, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant police officers. Plaintiff was subjected to the use of excessive force, assault, and battery in his unlawful arrest, as well as suffered mental and emotional injury as a result. Plaintiff was subjected to unlawful imprisonment for approximately one (1) day before he was finally released. Plaintiff's criminal case was dismissed and sealed on or about July 11, 2022. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Eric Cumming is a resident of the state of New York.
3. NYPD Police Officer Christopher Brower, Shield No. 7455, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD Police Officer Christopher Brower, Shield No. 7455, is being sued in his individual and official capacities.
5. NYPD Police Officer Christopher Brower, Shield No. 7455, was at all times relevant herein assigned to the 76th Precinct.
6. NYPD Police Officers John and Jane Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD Police Officers John and Jane Does Numbers One through Ten are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On January 9, 2021, at approximately 10:36 P.M., Plaintiff was lawfully in the vicinity of Hoyt Street and Butler Street, County of Kings, State of New York, when he was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and denial of various federal constitutional rights by the defendant NYPD police officers.
12. Plaintiff was sitting in the rear driver side passenger seat of his friend's Nissan Altima, which was parked, in violation of no law, regulation, ordinance, or lawful order, when the defendant officers approached him.

13. Defendant officers asked Plaintiff and the other two individuals who were inside the parked vehicle to step outside the vehicle, absent reasonable suspicion or probable cause.

14. Defendant officers subjected Plaintiff to an unlawful pat down search, and then proceeded to search the vehicle on two separate occasions, without consent, probable cause or legal justification.

15. A defendant officer grabbed Plaintiff by his collar and violently pinned him against the vehicle, causing physical injuries.

16. Defendant officers arrested Plaintiff, placing him in unreasonably tight metal handcuffs causing pain to his wrists.

17. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

18. Plaintiff did not resist arrest at any point.

19. Plaintiff was placed in the back of an NYPD vehicle and transported to the 76th Precinct against his will. Plaintiff still did not know why he had been arrested.

20. Upon his arrival at the 76th Precinct, he was again unlawfully searched, fingerprinted, photographed and placed in a holding cell.

21. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

22. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff was engaged in criminal possession of a firearm and other related charges.

23. There was absolutely no probable cause to arrest the Plaintiff.

24. During Plaintiff's time in custody, those defendant officers not directly involved in the conduct described herein observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

25. On January 10, 2021, Plaintiff was arraigned and released on his own recognizance.

26. Plaintiff would return to court approximately ten (10) times before the charges against Plaintiff were dismissed and sealed on July 11, 2022.

27. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
29. Defendants owed a duty of care to Plaintiff.
30. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him.
31. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
32. All of the foregoing occurred without any fault or provocation by Plaintiff.
33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
34. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
35. As a result of the aforementioned conduct of defendants, Plaintiff's sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

36. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.
37. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
38. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed

under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

39. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.
40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

42. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.
43. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
44. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

45. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.
46. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
47. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.
48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are

therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
52. The use of excessive force by defendants by, amongst other things, grabbing him by the collar and pinning him against a vehicle, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
54. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
55. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
56. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are

therefore responsible for their conduct.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effects as if more fully set forth at length herein.
60. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
61. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
63. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
64. Defendants failed to intervene to prevent the unlawful conduct described herein.
65. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.
66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.
67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

**Violation of Fourth and Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process**

68. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.
69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.
70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.
71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
72. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
73. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

TENTH CAUSE OF ACTION
Malicious Prosecution

74. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.
75. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.
76. Defendants commenced and continued a criminal proceeding against Plaintiff.
77. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.
78. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION
Individual Defendant Officers' Violation of Plaintiff's AC 8-802 Rights

79. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
80. The acts of the defendant officers constituted conduct under color of any law, ordinance, regulation, custom or usage
81. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
82. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention of one (1) day.
83. By reasons of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured

TWELVTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

84. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
85. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
86. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
87. The defendant officers that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
88. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
89. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officers' Violations of
Plaintiff's AC 8-802 Rights**

90. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
91. Defendant officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
92. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.
93. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
94. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
95. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately four (4) days.
96. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION**Violation of Article I, § 12 of the New York State Constitution**

97. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
98. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
 - i. freedom from unreasonable search and seizure of his person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained

- without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.
99. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.
100. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
101. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

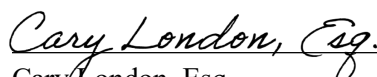
102. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 et seq..

DATED: New York, New York
April 17, 2023

Yours, etc.


Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York,
New York 10007

NYPD POLICE OFFICER CHRISTOPHER BROWER, Shield No. 7455, 76th
Precinct, 191 Union Street, Brooklyn, NY 11231

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 17, 2023

Cary London, Esq.
CARY LONDON, ESQ.